El Paso Natural Gas Company, L.L.C.
a Kinder Morgan company

July 30, 2026

Federal Energy Regulatory Commission
888 First Street, N.E.
Washington, D.C. 20426

Attention: Ms. Debbie-Anne A. Reese, Secretary

Re: El Paso Natural Gas Company, L.L.C.;
Docket No. CP26-___-000,
Prior Notice Request for Authorization for the
McCloud Lateral Project
Sections 157.205, 157.208(b), 157.210 and 157.211(b)

Dear Ms. Reese:

El Paso Natural Gas Company, L.L.C. ("EPNG") hereby submits for filing with the Federal Energy Regulatory Commission ("Commission" or "FERC") this Request for Prior Notice Authorization submitted pursuant to sections 157.205, 157.208, 157.210 and 157.211 of the Federal Energy Regulatory Commission's regulations under the Natural Gas Act ("NGA"), and EPNG's blanket certificate issued in Docket No. CP82-435-000, for authorization to construct, install, operate and maintain an approximately 5.8 mile, 16-inch outside diameter pipeline lateral, and a new delivery meter station and related appurtenances, located in El Paso County, Texas. The proposed facilities, referred to as the "McCloud Lateral Project" or "Project", are designed to provide up to 167,000 Dth per day of firm transportation capacity from EPNG's South Mainline System to a new delivery point.

Description of Items Being Filed

In accordance with the Federal Energy Regulatory Commission regulations regarding Critical Energy Infrastructure Information ("CEII") filing guidelines and privileged and confidential treatment of sensitive information, 18 C.F.R. § 388.112 and 388.113, EPNG has organized the items being filed as described below.

Public – Volume I:

- Application Text;
- Verification Statement;
- Federal Register Notice;
- Attachments A through D (except as noted below)

Privileged (Non-Public) – Volume II:

- Attachment A – Environmental Report, Appendix 1B2 – Non-Public Alignment Sheets with Landowner Information
- Attachment A - Environmental Report, Appendix 1D – Affected Landowners List
- Attachment A - Environmental Report, Appendix 4A – Cultural Resources Report

CEII (Other Non-Public) – Volume III:

- Attachment B - Flow Diagrams
- Electronic Hydraulic Flow Model Files

Pursuant to 18 C.F.R. § 388.112 (2025), EPNG respectfully requests privileged treatment of the material provided in Volume II to include the cultural resources report, and the non-public alignment sheets and affected landowners list for purposes of landowner privacy. Accordingly, EPNG has labeled this information "Contains CU//PRIV – Do Not Release".

Similarly, pursuant to 18 C.F.R. § 388.113 (2025), EPNG respectfully requests CEII treatment of the flow diagrams provided in Volume III. Accordingly, EPNG has labeled this information "Contains CUI//CEII – Do Not Release". EPNG requests that the Commission accord CEII treatment to this information for the life of the assets so as not to place the assets and personnel of EPNG at undue risk.

EPNG notes that the electronic hydraulic flow models included with this response contain proprietary and competitively sensitive commercial, engineering or design information that is considered a trade secret and confidential information. In accordance with the Commission's regulations, 18 C.F.R. § 388.112 (2025), EPNG hereby requests privileged treatment for this material and notes that the Commission routinely treats this type of information as privileged and exempt from mandatory disclosure under the Freedom of Information Act, 18 C.F.R. § 388.107(d) (2025); 5 U.S.C. § 552(b)(4). EPNG has labeled this material as "CUI//PRIV CONTAINS PRIVILEGED INFORMATION – DO NOT RELEASE." Some of the privileged material is also considered CEII pursuant to the Commission's regulations 18 C.F.R. § 388.113 (2025) and has been labeled as "CUI//CEII CONTAINS CRITICAL ENERGY INFRASTRUCTURE INFORMATION – DO NOT RELEASE".

If you have any questions regarding the CEII or Privileged Information being filed herewith, please contact Mr. Francisco Tarin at 719-667-7517 or via email at Francisco_Tarin@kindermorgan.com.

Filing Information

This request is being filed with the Commission's Secretary in accordance with the Commission's Order No. 703, *Filing Via the Internet,* guidelines issued on November 15, 2007 in Docket No. RM07-16-000.

Please direct any questions regarding this matter to Francisco Tarin at 719-667-7517 or via email at Francisco_Tarin@kindermorgan.com.

Respectfully submitted,
EL PASO NATURAL GAS COMPANY,
L.L.C.

By /s/
Francisco Tarin
Director, Regulatory

Enclosures

UNITED STATES OF AMERICA
BEFORE THE
FEDERAL ENERGY REGULATORY COMMISSION

EL PASO NATURAL GAS COMPANY, L.L.C.

REQUEST FOR PRIOR NOTICE AUTHORIZATION PURSUANT TO BLANKET CERTIFCATE

Docket No. CP26-___-000

Dated: July 30, 2026

UNITED STATES OF AMERICA
BEFORE THE
FEDERAL ENERGY REGULATORY COMMISSION

El Paso Natural Gas Company, L.L.C.	)	Docket No. CP26-___-000

REQUEST FOR PRIOR NOTICE AUTHORIZATION
PURSUANT TO BLANKET CERTIFICATE

Pursuant to 18 C.F.R. §§ 157.205, 157.208, 157.210 and 157.211 (2025) of the regulations of the Federal Energy Regulatory Commission ("Commission"), and the blanket authority granted on September 8, 1982 to El Paso Natural Gas Company, L.L.C. ("EPNG") in Docket No. CP82-435-000,[1] EPNG hereby submits this request to construct, install, modify, operate and maintain an approximately 5.8-mile, 16-inch outside diameter ("O.D.") pipeline lateral and a new delivery meter station with related appurtenances, located in El Paso County, Texas (hereinafter referred to as the "McCloud Lateral Project" or the "Project").[2] As more fully described herein, the requested authorization will allow EPNG to provide up to 167,000 Dekatherms per day ("Dth/day") of firm transportation capacity from its South Mainline System to a new delivery point that will ultimately provide service to a planned new power generation facility in El Paso County, Texas. EPNG estimates the cost of the Project to be $20.3 million.

In support of this request and pursuant to the presently effective regulations under the Natural Gas Act ("NGA") and the Rules of Practice and Procedures of the Commission, EPNG respectfully submits the following information:

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1 *See El Paso Natural Gas Company,* 20 FERC ¶ 62,454 (1982).

2 With the exception of a 120-foot permanent access road segment located in Otero County, New Mexico, EPNG's Project facilities are situated in El Paso County, Texas.

I.

IDENTITY OF APPLICANT

The exact legal name of EPNG is El Paso Natural Gas Company, L.L.C. It is a limited liability company duly organized and existing under the laws of the State of Delaware, having its principal place of business located in Colorado Springs, Colorado. EPNG is authorized to conduct business as a foreign corporation in the States of Arizona, California, Colorado, Idaho, Kansas, Louisiana, Nevada, New Mexico, New York, Oklahoma, Texas, Utah, and the District of Columbia.

EPNG received blanket certificate construction authorization in Docket No. CP82-435-000 for routine construction and operation activities, and abandonments of facilities all as contemplated by Part 157, Subpart F of the Commission's regulations. Similarly, EPNG received a blanket transportation certificate in Docket No. CP88-433-000 for transportation of natural gas on behalf of others as contemplated by Part 284, Subpart G, of the Commission's regulations.

II.

CORRESPONDENCE AND COMMUNICATIONS

The names, titles, mailing addresses, and telephone numbers of the persons designated to receive service and to whom communications concerning this application are to be addressed are as follows:

*Francisco Tarin
Director, Regulatory
El Paso Natural Gas Company, L.L.C.
Post Office Box 1087
Colorado Springs, CO 80944
Telephone: (719) 667-7517
Francisco_Tarin@kindermorgan.com

*Jenny Smith
Assistant General Counsel
El Paso Natural Gas Company, L.L.C.
Post Office Box 1087
Colorado Springs, CO 80944
Telephone: (719) 641-4037
Jenny_Smith@kindermorgan.com

*Nicholas Harding
Manager Regulatory
El Paso Natural Gas Company, L.L.C.
Post Office Box 1087
Colorado Springs, CO 80944
Telephone: (719) 520-4892
Nicholas_Harding@kindermorgan.com

*Persons designated to receive service pursuant to Rule 2010 of the Commission's Rules of Practice and Procedure, 18 C.F.R § 385.2010 (2025). EPNG respectfully requests that the Commission waive Rule 203(b)(3), 18 C.F.R. § 385.203(b)(3) (2025), in order to allow EPNG to include the representatives listed on the official service list for this proceeding. Additionally, service via email ("eService") is requested in lieu of paper copies.

III.

PURPOSE OF THE PROPOSED FACILITIES
18 C.F.R § 157.208(c)(1)(2025)

The proposed Project, which is more fully described below, will be constructed to meet demand for up to 167,000 Dth/d of firm transportation service on a new lateral pipeline that will interconnect with EPNG's South Mainline System to a new delivery point at a planned new power generation facility to be located in El Paso County, Texas.

In support of the McCloud Lateral Project, and in response to interest for firm natural gas transportation from EPNG's South Mainline system to a new delivery point in El Paso County, Texas, EPNG held a binding open season from March 16, 2026 to March 30, 2026 soliciting interest in such service. In its open season posting, EPNG solicited bids for up to 167,000 Dth/d of firm transportation capacity from the Enchanted Rock point (a virtual scheduling point on EPNG's system), a point located between the proposed McCloud Lateral and EPNG's South

Mainline system, to the McCloud Delivery Point to be located at the terminus of the proposed McCloud Lateral in El Paso County, Texas. In its open season posting, EPNG stated that the transportation capacity would be created by constructing an approximate 5-mile, 16-inch O.D. pipeline lateral upstream of EPNG's existing El Paso Compressor Station, and terminating at the McCloud Delivery Point.[3] Further, as noted in the open season, bidders for such capacity would be required to transport natural gas quantities to the Enchanted Rock virtual scheduling point for transportation on the lateral to the McCloud Delivery Point. At the conclusion of the open season, EPNG awarded the entire 167,000 Dth/d of firm transportation capacity to a single bidder, El Paso Electric Company ("EPEC"). EPEC submitted a bid for the entire lateral capacity for a term of 4 years. Based on the results of the open season, EPNG made the decision to move forward with its Project.

Upon receipt of all federal, state and local authorizations, and permits, EPNG anticipates starting construction on the Project in the fourth quarter 2026. Depending on the actual construction start date, the Project's in-service date is expected to be as early as January 1, 2027. This date coincides with the requested contractual in-service date for this capacity. EPNG estimates the cost to construct the Project facilities will be approximately $20.3 million.[4] The proposed Project facilities will be financed by EPNG with funds on hand, funds generated internally, borrowing under revolving credit agreements, or short-term financing which will be rolled into permanent financing.

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3 A copy of the open season is being provided as Attachment C of this Application.

4 Effective March 27, 2026, the prior notice cost limit provided in Section 157.208(d) of the Commission's regulations is $41,100,000. On June 18, 2025, the Commission issued a temporary cost limit waiver in Docket No. CP25-208-000 which increased the prior notice threshold to $61,650,000 for projects placed in service by May 31, 2027. *See Interstate Natural Gas Assoc. of Am.*, 191 FERC ¶ 61,206 at P 13 (2025). On May 21, 2026, the Commission extended the in-service date requirement for the temporary cost limit waiver to May 31, 2028. *Interstate Natural Gas Assoc. of Am.*, 195 FERC ¶ 61,129 (2026).

IV.

PROPOSED FACILITIES
18 C.F.R § 157.208(c)(2), 157.210 and157.211(2025)

As noted above, EPNG's McCloud Lateral Project will extend from EPNG's South Mainline System to the proposed McCloud Meter Station, all in El Paso County, Texas. The proposed new lateral will interconnect with EPNG's existing parallel Line Nos. 1100 and 1103 at approximately Milepost 207 and will be tied into these lines just upstream of EPNG's existing El Paso Compressor Station within the existing compressor station yard. The McCloud Lateral Project facilities will specifically include:

(i) construction and operation of approximately 5.8 miles of 16-inch O.D. natural gas lateral pipeline that will extend from two hot taps connecting the lateral pipeline to EPNG's existing 26-inch O.D. Line No. 1100 and to the existing 30-inch O.D. Line No. 1103 to a new delivery point at the terminus of the lateral pipeline;

(ii) construction and operation of the McCloud Meter Station at the terminus of the proposed new lateral pipeline consisting of two 8-inch ultrasonic meters, one 4-inch ultrasonic meter, one 1.5-inch Coriolis meter and related appurtenances; and

(iii) the installation of auxiliary facilities to include new pig launcher/receiver facilities located at each end of the new lateral pipeline.

Additionally, EPNG is proposing to build a new 65-foot, permanent access road to be located along EPNG's proposed permanent right-of-way for the new lateral pipeline. EPNG has included as Attachment D herein, a location of facility map showing the relationship of the Project facilities to EPNG's system.

The facilities will have a design capacity of up to 167,000 Dth/d as illustrated in the flow diagrams being provided herein under Tab B. As explained above, the Project shipper will be

responsible for transporting natural gas to the McCloud Lateral utilizing upstream capacity on EPNG's mainline system.

V.

ENVIRONMENTAL INFORMATION
18 C.F.R § 157.206(b) and 157.208(c)(9)(2025)

EPNG has included herein as Attachment A, the Environmental Report that contains an analysis of the environmental impacts associated with the Project. The proposed Project has been designed to minimize the impact on the affected landowners and the environment.[5] As noted in more detail in its Environmental Report, EPNG developed and routed the proposed McCloud Lateral Project through consultation with the Project shipper, the City of El Paso, Texas, and other affected landowners in the area to ensure the construction of the proposed Project. The proposed routing and design have been developed to have minor short-term impacts on landowners and the environment, minimizing any impact to affected landowners and the environment. As part of its permitting process, EPNG conducted a biological review using the U.S. Fish and Wildlife Service's ("USFWS") Information for Planning and Consultation system ("IPaC") to evaluate any federally listed species or designated critical habitat that may be present in the proposed Project area and determined that the proposed Project would have "no effect" on federally listed species or designated critical habitat.[6] EPNG also consulted with the Texas Historical Commission (THC) and received concurrence that the proposed Project activities would have "no effect on historic

[5] EPNG is in negotiations for acquiring the necessary right-of-way necessary for the construction and operation of its Project.

[6] Based on an internal review that the proposed Project would have no effect on any federally listed species or critical habitat, EPNG was directed by the Austin, Texas Ecological Services Field Office to utilize the USFWS's IPaC system for further determination. Subsequent to the "no effect" determination obtained through the USFWS's IPaC system, EPNG received email correspondence dated July 14, 2026, from the USFWS's Austin, Texas field office, that the USFWS does not provide concurrence letters. An effects determination discussion of the proposed Project impacts on federally listed species is provided in Section 3.4.2 and Table 3.4-1 of Environmental Resource Report 3 provided as part of Attachment A to this application.

properties".[7] Given the short 120-foot segment of permanent access road to be located near New Mexico/Texas state line in Otero County, New Mexico, EPNG consulted with the New Mexico State Historic Preservation Office (NMSHPO) and similarly received concurrence that the proposed Project activities would have "no effect on historic properties", as provided in Appendix 1E to the Environmental Report. For reference, Table 1.8-1 included in Resource Report 1 of the Environmental Report identifies all federal and state environmental permits and other clearances required for this Project and the current status of each permit and clearance.

EPNG will install the 16-inch natural gas pipeline lateral within a proposed 75-foot-wide corridor that will include 30 feet of permanent easement and 45 feet of temporary workspace, all as more fully described in its Environmental Report. Construction impacts will be confined to the 75-foot-wide corridor and additional temporary workspace locations that are located at points of inflection and at roadway crossings. Additional temporary workspace locations are also proposed within the footprint of the existing El Paso Compressor Station and adjacent to the proposed McCloud Meter Station to provide the construction contractor with additional space for parking and staging equipment. A total of 71.63 acres of land will be utilized during construction and includes permanent pipeline right-of-way, and temporary workspace locations for construction, and new facilities (i.e., pig launcher/receivers, hot taps, and the new McCloud Meter Station). Four existing access roads, and one new access road will be utilized during construction and account for approximately 1.88 acres of land.

The Project will be implemented in accordance with the Commission's currently effective Upland Erosion Control, Revegetation and Maintenance Plan, issued May 2013. There will be no

[7] A summary of the cultural review and impacts of the proposed Project and associated agency correspondence are provided in Environmental Resource Report 4 of Attachment A to this application. The cultural resource survey report is being provided in a separate volume, Volume II under privileged and confidential information.

wetland impacts as a result of Project activities. There are no expected impacts to the sensitive environmental areas present within the Project's limits-of-disturbance, as provided in Appendix 2A to the Environmental Report. EPNG agrees to comply with all mitigation requirements stated in the environmental clearances from applicable regulatory agencies for the proposed Project.

EPNG will commit to having an Environmental Inspector's report filed weekly with the Commission during Project construction activities, pursuant to Section 157.208(c)(10) of the Commission's regulations.

EPNG will comply with the landowner notification requirements, in accordance with Section 157.203(d) of the Commission's regulations, and will make a good faith effort to notify the affected landowners within at least three business days following the date that a docket number is assigned to the application. It is EPNG's intent to work with the affected landowners to address any concerns they may have regarding the Project.

Therefore, EPNG has concluded from its environmental review, and supported by the environmental reports provided as part of this application, that the Project will not have a significant effect on the quality of human health, the environment, or the affected landowners.

VI.

CERTIFICATION

In accordance with the Natural Gas Pipeline Safety Act of 1968, Section 7, 82 Stat. 725 (1968), and pursuant to the Pipeline Safety Improvement Act of 2002, EPNG certifies that the facilities proposed herein will be designed, constructed, tested, operated, replaced, and maintained in accordance with the requirements of Title 49, Part 192, of the Code of Federal Regulations, or any superseding federal or state safety code applicable to natural gas transmission pipelines.

VII.

PUBLIC CONVENIENCE AND NECESSITY
18 C.F.R § 157.208(c)(7)(2025)

EPNG's proposed Project is needed as evidenced by the response to the open season held for this Project so that EPNG can provide the requested firm transportation capacity to the Project shipper, El Paso Electric Company.

Due to the limited scope of the proposed Project activities, EPNG will be able to meet the needs of the Project shipper for firm transportation capacity, with minimal impacts to environmental resources and the affected landowners. Further, the Project will not result in a detrimental impact or disadvantage to EPNG's existing customers, as demonstrated in the flow diagram included with this request in Attachment B. EPNG affirms it will continue to meet all of its firm contractual service obligations after the Project facilities are placed into service.

There are no other Commission applications pending or required under the NGA for the proposed Project.

In compliance with Section 157.205(b)(4) of the Commission's regulations, and as set forth in the attached Verification Statement, EPNG hereby confirms that the proposed activity described herein complies with the requirements of Subpart F of Part 157 of the Commission's regulations. EPNG is willing and able to do the acts and perform the services for which authorization is requested herein and in so doing, to conform to the provisions of the NGA and the Commission's regulations promulgated thereunder. Accordingly, EPNG submits that the proposed Project activities are permitted and required by the public convenience and necessity.

VIII.

ADDITIONAL INFORMATION

EPNG is submitting this request for prior notice authorization pursuant to 18 C.F.R. §§ 157.205, 157.208, 157.210, and 157.211 (2025) of the Commission's regulations. In compliance with the Commission's regulations, EPNG hereby provides the following additional information and makes such information a part of this notice. EPNG requests that the Commission treat any omitted material as inapplicable or otherwise unnecessary to disclose fully the nature of the Project proposed herein.

VERIFICATION STATEMENT	Attached hereto.
NOTICE OF REQUEST	Attached hereto.
ATTACHMENT A	Attached is an Environmental Report in compliance with Section 157.206 and Part 380 of the Commission's regulations, 18 C.F.R. § 157.206 and Part 380 (2025). Included in Appendix 1A to the Environmental Report are the following (1) general location map of the Project; and (2) a USGS 7.5-minute series topographic map showing the Project location and indicating the location of sensitive environmental areas within one-quarter mile of Project-related construction activities, as required under Section 157.208(c)(3)(2025); and Appendix 1B has an aerial image of the proposed new pipeline lateral, as required under Section 157.208(c)(3), 18 C.F.R. § 157.208(c)(3) (2025).
ATTACHMENT B	Attached is a flow diagram showing daily design capacity, daily maximum capacity and operating pressures with and without the proposed facilities for the portion of EPNG's system affected by the proposed Project. The flow diagram is designated as Critical Energy Infrastructure Information and privileged information and is marked "CUI//CEII - Contains Critical Energy Infrastructure Information – Do Not Release" and "CUI//PRIV - Contains Privileged Information - Do Not Release" as defined in Sections 388.112 and 388.113 of the

	Commission's regulations, 18 C.F.R. §§ 388.112, 388.113 (2025)".
ATTACHMENT C	Open season notice
ATTACHMENT D	Location of Facilities Map
ATTACHMENT E	Form of Non-Disclosure Agreement

IX.

CONCLUSION

WHEREFORE, EPNG herein respectfully requests that, upon consideration thereof, the Commission:

1. Pursuant to Sections 157.205, 157.208, 157.210, and 157.211 of the Commission's regulations, grant EPNG authority to construct, operate, and maintain the McCloud Lateral Project all as more fully described herein.
2. Allow the proposed activities to be authorized in accordance with Section 157.205 of the Commission's regulations effective 60 days after publication of the Notice in the Federal Register, if no protests are timely filed or if such protests are withdrawn.
3. If protests are filed and not withdrawn, treat the notice as an application pursuant to Section 7 of the NGA and approve the request in accordance with the shortened procedures set forth in Rules 801 and 802 of the Commission's Rules of Practice and Procedure; and
4. Grant such further relief and waivers as may be proper and appropriate.

Respectfully submitted,

EL PASO NATURAL GAS COMPANY, L.L.C.

By *__/s/ Francisco Tarin__*

Director, Regulatory
Post Office Box 1087
Colorado Springs, CO 80944
Telephone: (719) 667-7517

Dated: July 30, 2026

VERIFICATION
18 CFR § 157.205(b)(4)

STATE OF COLORADO)
)
COUNTY OF EL PASO)

Francisco Tarin, being duly sworn on his oath, deposes and says that he is the Director, Regulatory for El Paso Natural Gas Company, L.L.C., that as such he is authorized to verify the foregoing filing; that he has read and is familiar with the contents thereof; and that the statements made therein are true and accurate to the best of his information, knowledge and belief; and that the activities proposed in the foregoing filing comply with the requirements of Subpart F of Part 157 of the Regulations of the Federal Energy Regulatory Commission.

Francisco Tarin

SUBSCRIBED AND SWORN TO before me, the undersigned authority, on this 30th day of July, 2026.

Savannah Ekengren
Notary Public, State of Colorado
My Commission Expires: November 26, 2028

SAVANNAH EKENGREN
NOTARY PUBLIC - STATE OF COLORADO
NOTARY ID 20244043602
MY COMMISSION EXPIRES NOV 26, 2028

UNITED STATES OF AMERICA

Before the

FEDERAL ENERGY REGULATORY COMMISSION

El Paso Natural Gas Company, L.L.C.) Docket No. CP26-___-000

Prior Notice Request of El Paso Natural Gas Company, L.L.C. for
the McCloud Lateral Project

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UNITED STATES OF AMERICA
FEDERAL ENERGY REGULATORY COMMISSION

El Paso Natural Gas Company, L.L.C. Docket No. CP26-___-000

NOTICE OF REQUEST UNDER BLANKET AUTHORIZATION AND ESTABLISHING INTERVENTION AND PROTEST DEADLINE

(August __, 2026)

Take notice that on July 30, 2026, El Paso Natural Gas Company, L.L.C. (EPNG), Post Office Box 1087, Colorado Springs, Colorado 80944, filed in the above-referenced docket, a prior notice request pursuant to sections 157.205, 157.208, 157.210 and 157.211 of the Commission's regulations under the Natural Gas Act (NGA), and EPNG's blanket certificate issued in Docket No. CP82-435-000, for authorization to construct, install, modify, operate and maintain an approximate 5.8-mile, 16-inch outside diameter pipeline lateral and a new delivery meter station, located in El Paso County, Texas. The proposed facilities, referred to as the "McCloud Lateral Project" or "Project," are designed to provide up to 167,000 Dth per day of firm transportation capacity from EPNG's South Mainline System to a new delivery point. The estimated cost of the Project is $21.3 million, all as more fully set forth in the request which is on file with the Commission and open to public inspection.

In addition to publishing the full text of this document in the Federal Register, the Commission provides all interested persons an opportunity to view and/or print the contents of this document via the Internet through the Commission's Home Page (http://www.ferc.gov). From the Commission's Home Page on the Internet, this information is available on eLibrary. The full text of this document is available on eLibrary in PDF and Microsoft Word format for viewing, printing, and/or downloading. To access this document in eLibrary, type the docket number excluding the last three digits of this document in the docket number field.

User assistance is available for eLibrary and the Commission's website during normal business hours from FERC Online Support at (202) 502-6652 (toll free at 1-866-208-3676) or email at ferconlinesupport@ferc.gov, or the Public Reference Room at (202) 502-8371, TTY (202) 502-8659. E-mail the Public Reference Room at public.referenceroom@ferc.gov.

Any questions concerning this request should be directed to Francisco Tarin, Director, Regulatory, El Paso Natural Gas Company, L.L.C., Post Office Box 1087,

Colorado Springs, Colorado 80944, by phone at (719) 667-7517, or by email at Francisco_Tarin@kindermorgan.com.

PUBLIC PARTICIPATION

There are three ways to become involved in the Commission's review of this project: you can file a protest to the project, you can file a motion to intervene in the proceeding, and you can file comments on the project. There is no fee or cost for filing protests, motions to intervene, or comments. The deadline for filing protests, motions to intervene, and comments is 5:00 p.m. Eastern Time on **____, 2026**. How to file protests, motions to intervene, and comments is explained below.

The Commission's Office of Public Participation (OPP) supports meaningful public engagement and participation in Commission proceedings. OPP can help members of the public, including landowners, environmental justice communities, Tribal members and others, access publicly available information and navigate Commission processes. For public inquiries and assistance with making filings such as interventions, comments, or requests for rehearing, the public is encouraged to contact OPP at (202) 502-6595 or OPP@ferc.gov.

Protests

Pursuant to section 157.205 of the Commission's regulations under the NGA,[1] any person[2] or the Commission staff may file a protest to the request. If no protest is filed within the time allowed or if a protest is filed and then withdrawn within 30 days after the allowed time for filing a protest, the proposed activity shall be deemed to be authorized effective the day after the time allowed for protest. If a protest is filed and not withdrawn within 30 days after the time allowed for filing a protest, the instant request for authorization will be considered by the Commission.

Protests must comply with the requirements specified in section 157.205(e) of the Commission's regulations,[3] and must be submitted by the protest deadline, which is **____, 2026**. A protest may also serve as a motion to intervene so long as the protestor states it also seeks to be an intervenor.

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[1] 18 C.F.R. 157.205.

[2] Persons include individuals, organizations, businesses, municipalities, and other entities. 18 C.F.R. 385.102(d).

[3] 18 C.F.R. 157.205(e).

Interventions

Any person has the option to file a motion to intervene in this proceeding. Only intervenors have the right to request rehearing of Commission orders issued in this proceeding and to subsequently challenge the Commission's orders in the U.S. Circuit Courts of Appeal.

To intervene, you must submit a motion to intervene to the Commission in accordance with Rule 214 of the Commission's Rules of Practice and Procedure[4] and the regulations under the NGA[5] by the intervention deadline for the project, which is **____, 2026**. As described further in Rule 214, your motion to intervene must state, to the extent known, your position regarding the proceeding, as well as your interest in the proceeding. For an individual, this could include your status as a landowner, ratepayer, resident of an impacted community, or recreationist. You do not need to have property directly impacted by the project in order to intervene. For more information about motions to intervene, refer to the FERC website at https://www.ferc.gov/resources/guides/how-to/intervene.asp.

All timely, unopposed motions to intervene are automatically granted by operation of Rule 214(c)(1). Motions to intervene that are filed after the intervention deadline are untimely and may be denied. Any late-filed motion to intervene must show good cause for being late and must explain why the time limitation should be waived and provide justification by reference to factors set forth in Rule 214(d) of the Commission's Rules and Regulations. A person obtaining party status will be placed on the service list maintained by the Secretary of the Commission and will receive copies (paper or electronic) of all documents filed by the applicant and by all other parties.

Comments

Any person wishing to comment on the project may do so. The Commission considers all comments received about the project in determining the appropriate action to be taken. To ensure that your comments are timely and properly recorded, please submit your comments on or before **____, 2026**. **The filing of a comment alone will not serve to make the filer a party to the proceeding.** To become a party, you must intervene in the proceeding.

[4] 18 C.F.R. 385.214.

[5] 18 C.F.R. 157.10.

How to File Protests, Interventions, and Comments

There are two ways to submit protests, motions to intervene, and comments. In both instances, please reference the Project docket number **CP26-___-000** in your submission.

(1) You may file your protest, motion to intervene, and comments by using the Commission's eFiling feature, which is located on the Commission's website (www.ferc.gov) under the link to Documents and Filings. New eFiling users must first create an account by clicking on "eRegister." You will be asked to select the type of filing you are making; first select "General" and then select "Protest", "Intervention", or "Comment on a Filing"; or [6]

(2) You can file a paper copy of your submission by mailing it to the address below. Your submission must reference the Project docket number **CP26-___-000**.

To file via USPS:
Debbie-Anne A. Reese, Secretary
Federal Energy Regulatory Commission
888 First Street NE
Washington, DC 20426

To file via any other method:
Debbie-Anne A. Reese, Secretary
Federal Energy Regulatory Commission
12225 Wilkins Avenue
Rockville, Maryland 20852

The Commission encourages electronic filing of submissions (option 1 above) and has eFiling staff available to assist you at (202) 502-8258 or FercOnlineSupport@ferc.gov.

Protests and motions to intervene must be served on the applicant either by mail or email (with a link to the document) at: Francisco Tarin, Director, Regulatory, El Paso Natural Gas Company, L.L.C., Post Office Box 1087, Colorado Springs, Colorado 80944, by phone at (719) 667-7517, or by email at Francisco_Tarin@kindermorgan.com. Any subsequent submissions by an intervenor must be served on the applicant and all other

[6] Additionally, you may file your comments electronically by using the eComment feature, which is located on the Commission's website at www.ferc.gov under the link to Documents and Filings. Using eComment is an easy method for interested persons to submit brief, text-only comments on a project.

parties to the proceeding. Contact information for parties can be downloaded from the service list at the eService link on FERC Online.

TRACKING THE PROCEEDING

Throughout the proceeding, additional information about the project will be available from the Commission's Office of External Affairs, at **(866) 208-FERC**, or on the FERC website at www.ferc.gov using the "eLibrary" link as described above. The eLibrary link also provides access to the texts of all formal documents issued by the Commission, such as orders, notices, and rulemakings.

In addition, the Commission offers a free service called eSubscription which allows you to keep track of all formal issuances and submittals in specific dockets. This can reduce the amount of time you spend researching proceedings by automatically providing you with notification of these filings, document summaries, and direct links to the documents. For more information and to register, go to www.ferc.gov/docs-filing/esubscription.asp.

(Authority: 18 CFR 2.1)

Debbie-Anne A. Reese,
Secretary.

El Paso Natural Gas Company, L.L.C.
a Kinder Morgan company

REQUEST FOR PRIOR NOTICE AUTHORIZATION PURSUANT TO BLANKET CERTIFICATE

ATTACHMENT A

Environmental Report

McCLOUD LATERAL PROJECT

Docket No. CP26-___-000

El Paso Natural Gas Company, L.L.C.
a Kinder Morgan company

REQUEST FOR PRIOR NOTICE AUTHORIZATION PURSUANT TO BLANKET CERTIFICATE

ATTACHMENT B

Flow Diagrams

This information contains Critical Energy Infrastructure Information and therefore is being filed as non-public information in Volume III and labeled "Contains CUI//CEII – Do Not Release"

MCCLOUD LATERAL PROJECT

Docket No. CP26-___-000

El Paso Natural Gas Company, L.L.C.
a Kinder Morgan company

REQUEST FOR PRIOR NOTICE AUTHORIZATION PURSUANT TO BLANKET CERTIFICATE

ATTACHMENT C

Open Season

MCCLOUD LATERAL PROJECT

Docket No. CP26-___-000

MCCLOUD LATERAL OPEN SEASON
on EL PASO NATURAL GAS COMPANY, L.L.C. ("Transporter")

Bid Deadline: March 30, 2026 at 2:00 p.m. Mountain Time ("MT")

Portable Document Format (.pdf) file of Open Season:
https://pipeline2.kindermorgan.com/PortalWeb/PortalDocs.aspx?code=EPNG&parent=1600

In response to market interest, El Paso Natural Gas Company, L.L.C. ("*Transporter*") is conducting this binding McCloud Lateral Open Season (this "*Open Season*") for firm natural gas transportation service on a new lateral pipeline off Transporter's pipeline system as further described below (the "*McCloud Lateral*"). Transporter proposes to provide the lateral capacity described below (the "*Project Capacity*") by constructing additional facilities, including an approximate 5-mile, 16" (outside diameter) pipeline lateral upstream of the El Paso Compressor Station, ending at a new delivery meter station to be included with this Open Season (the "*Expansion Project Facilities*").

The purpose of this Open Season is to solicit binding commitments for the Project Capacity from bidders that are willing to commit to such firm transportation service under terms and conditions described below and in accordance with all applicable rules and regulations of the Federal Energy Regulatory Commission ("*FERC*") and the terms of Transporter's FERC Gas Tariff, Third Revised Volume No. 1A (the "*Tariff*").

Project Information:

Rate Schedule:	FT-1
Volume / Transportation Contract Demand:	167,000 Dth/day
Primary Receipt Point:	Enchanted Rock (ENCHROCK, PIN 58133). Enchanted Rock will be a virtual Receipt Point, located near the interconnect between the proposed McCloud Lateral and EPNG's south mainline system. **Note:** Gas received at this location must be transported on Transporter's pipeline to this location. Currently, the only source of gas at this location is from Transporter's pipeline. Therefore, bidders awarded capacity in this Open Season will be responsible, directly or indirectly, for the delivery of natural gas to this virtual Receipt Point. Nominations may only be made to this virtual Receipt Point for deliveries on the McCloud Lateral. No other nominations may be made to this Receipt Point.
Primary Delivery Point:	McCloud Delivery Point **Note:** The McCloud Delivery Point would only be established if and when a term begins for a new Firm Transportation Service Agreement for the Project Capacity as a result of this Open Season.
Flow Path:	NA
Capacity Available Starting:	Anticipated to be January 1, 2027 (hereinafter the "*In-Service Date*")

Proposed Minimum Term:	4 years from the In-Service Date. If bidder seeks a start date after the In-Service Date, bidder should identify the requested start date and the reason for such request.
Recommended Rate:	Transporter recommends that bids have a proposed rate that is no less than $4.2645/Dth per month or $0.1402/Dth per day (although Transporter reserves the right to reject any bid which fails to comport with the provisions of this Open Season).

General Open Season Requirements:

To bid, complete the attached binding bid sheet and e-mail it to KMWestBids@KinderMorgan.com on or before the Open Season End Date.

Open Season Start Date: March 16, 2026, at 2:00 PM MT

Open Season End Date: March 30, 2026, at 2:00 PM MT

Award Notification Deadline: April 7, 2026, at 4:00 PM MT

Transporter will rely upon the time an e-mailed bid is received to determine whether a bid is timely. Bids that are received after the Open Season End Date (as determined by the time stamp on Transporter's e-mail inbox) will be considered invalid bids and will not be eligible for an award of capacity in this Open Season. Transporter recommends that bids be submitted well in advance of the Open Season End Date to minimize the risk that any e-mail delay could cause a bid to be excluded from consideration.

Bid sheets must include the bidder's name, the name of this Open Season (*i.e.*, "*McCloud Lateral Open Season*"), the quantity of Project Capacity, the term, and the rate.

By submitting a bid sheet, a bidder certifies that: (a) all information contained in its bid sheet is complete, true, and accurate in all respects; (b) it satisfies, or will be able to satisfy, all the requirements of the Tariff and the requirements of this Open Season; and (c) the person submitting the bid sheet has full authority to bind the bidder.

A bidder may have only one bid sheet pending for evaluation at a time in this Open Season. A submitted bid sheet for this Open Season, however, may be withdrawn by providing written notice of withdrawal to Transporter prior to the Open Season End Date and using the same process as submitting bid sheets as described above. Transporter will use the time and date stamp on Transporter's e-mail box to determine a timely withdrawal. Once a submitted bid sheet is withdrawn, another subsequent bid sheet may be submitted by the same bidder if and only if the subsequent bid is at a higher present value ("*PV*"). Any subsequent bid with a PV equal to or lower than the withdrawn bid will be considered invalid.

Bids submitted in this Open Season on or before the Open Season End Date that have not been properly withdrawn or considered invalid will constitute a binding irrevocable offer by the bidder to contract for capacity. The award of capacity in this Open Season will be an acceptance of the offer and the parties shall be contractually bound at that time.

In addition to the bid rate(s), each bidder shall be subject to the applicable maximum usage rate and maximum usage surcharges, all other maximum rates, charges and surcharges, including, but not limited to, ACA, Fuel and Lost and Unaccounted-for gas ("*L&U*"), Electric Power Costs, and any other authorized surcharges assessed under the applicable Rate Schedule of the Tariff as may change from time to time.

Transporter reserves the right to reject bids that are incomplete, contain offers of varying rates within the term, contain additional or modified terms, or are inconsistent with the provisions of the Tariff or this Open Season. Transporter will not consider bids that reflect varying quantities during the same month year over year for the duration of the term. Finally, the term must begin on the In-Service Date, or if not the In-Service Date, another date requested and explained by bidder, and end on the last day of the applicable month.

Transporter reserves the right to seek clarification of any bid (including, without limitation, the rate, quantity, term, or receipt or delivery point(s)) but shall not be required to do so. To be considered, any responding clarification by bidders must be provided in writing and within the time requested by Transporter. Such clarifications shall be incorporated as part of the binding bid submitted by the bidder and, in the case of conflict with the earlier submitted binding bid, the timely submitted written clarification shall control.

Bids must provide that, subject at all times to FERC's approval of the particular costs, cost recovery mechanism(s) and manner of recovery in question, Transporter shall be entitled to recovery of Greenhouse Gas Emissions Costs incurred by Transporter attributable to natural gas transported for bidder. As used herein "*Greenhouse Gas Emissions Costs*" means (a) the cost of any carbon emissions tax or other greenhouse gas assessment that is imposed on Transporter, and/or (b) the cost of any greenhouse gas mitigation efforts, including the costs of credits and offsets that Transporter incurs to comply with any greenhouse gas laws, rules or regulations. If (x) Transporter is unsuccessful in having the FERC-approved Greenhouse Gas Emissions Costs incurred by it recovered through a FERC-approved surcharge applicable to all shippers, and (y) such amounts are recoverable only through Transporter's FERC-approved recourse rates, then bidder will agree to modify the negotiated reservation rate by the amount of Transporter's maximum reservation rate under Rate Schedule FT-1 that is attributable to such Greenhouse Gas Emissions costs.

Creditworthiness Requirements:

Successful bidder(s) must demonstrate, and maintain throughout the term of the applicable FTSA, satisfaction of creditworthiness in the manner set forth below:

(a) If a bidder is rated by Standard & Poor's Corporation ("*S&P*") and/or Moody's Investor Service ("*Moody's*") (hereinafter referred to as a "*Rated Bidder*"), then the Rated Bidder shall be deemed creditworthy by Transporter if: (i) the Rated Bidder's senior unsecured debt securities are rated at least BBB- by S&P or Baa3 by Moody's (in the event the Rated Bidder is rated differently by multiple agencies, the lowest rating shall be used in making such determination); and (ii) the Rated Bidder is not under review for possible downgrade by S&P and/or Moody's to a level below that set forth in subpart (i) of this paragraph (a).

(b) If at any time prior to or during the term of any FTSA executed in connection with this Open Season, a Rated Bidder's S&P or Moody's rating falls below the levels described above, or a Rated Bidder becomes unrated or otherwise fails to satisfy the requirements of paragraph (a) above, then for the time period that the Rated Bidder's ratings are below that level or a Rated Bidder is unrated or is otherwise unable to satisfy the requirements of paragraph (a) above, Rated Bidder shall satisfy its creditworthiness obligation by providing one of the forms of credit support described in paragraph (c) below. If a Rated Bidder subsequently becomes able to satisfy the S&P or and Moody's rating levels described in paragraph (a) above, the Rated Bidder may immediately satisfy its creditworthiness obligations in the manner provided in paragraph (a) above.

(c) If at any time and from time to time bidder is unable to satisfy its creditworthiness obligations in the manner set forth in paragraph (a) above, then bidder shall satisfy its creditworthiness obligations by providing and maintaining, at its option: (i) an irrevocable, unconditional guarantee of its obligations in connection with this Open Season, and any related FTSA executed in connection with this Open Season, reasonably acceptable to

Transporter, and issued by another person or entity which satisfies the creditworthiness standards set forth in paragraph (a); or (ii) an irrevocable letter of credit from a bank reasonably acceptable to Transporter, and equal to the lesser of 36 months, or the period of time remaining in the term, of the anticipated charges in connection with this Open Season, and any related FTSA executed in connection with this Open Season; or (iii) such other credit arrangements which are mutually agreed to by Transporter and bidder, and which are accepted by Transporter on a nondiscriminatory basis.

To the extent evidence of bidder's creditworthiness is not publicly available, upon reasonable request by Transporter, bidder shall promptly provide evidence to Transporter of bidder's creditworthiness, which Transporter may share with its lenders or creditors or any nationally recognized rating agency that is then maintaining a rating of Transporter's debt securities.

If any change in ratings or conditions requires bidder to change the manner in which it demonstrates its satisfaction of its creditworthiness requirements, bidder shall make that demonstration (including, if necessary, the provision of any irrevocable unconditional guarantee or irrevocable letter of credit) within 15 business days of the change in ratings or conditions requiring the new demonstration of creditworthiness.

Bidders that fail to satisfy the creditworthiness requirements of this section within a reasonable time will have their capacity award withdrawn. Transporter reserves the right to seek any and all permitted remedies as a result of the breach of the bid. Transporter will treat any financial statements provided by bidders as confidential.

Execution of FTSA:

Each successful bidder and Transporter shall enter into and execute a Firm Transportation Service Agreement (a "*FTSA*") reflecting the terms of its bid as awarded by Transporter. All successful bidders shall execute and return a FTSA within the earlier of the day before the first day of the term of firm transportation service in the bid as awarded by Transporter or 20 business days following the day Transporter tenders it to the bidder ("*Execution Date*"). If a successful bidder fails to fully execute and return the FTSA on or before the Execution Date, then Transporter reserves the right to cancel the successful bidder's binding bid without prejudice as to Transporter's right to seek any and all permitted remedies as a result of the successful bidder's failure to execute the FTSA. The FTSA will be in the form contained in the Tariff, with certain additional non-conforming provisions consistent with the requirements and conditions set forth in this Open Season related to creditworthiness and the construction of incremental facilities required to provide transportation service. A contractual right of first refusal ("*ROFR*") is offered with the Project Capacity and will be included in the FTSA. Transporter and any successful bidder may mutually agree to enter into and execute more than one FTSA that together reflect all the terms of the successful bid as awarded by Transporter.

Evaluation Criteria:

If Transporter receives acceptable bids for capacity in excess of the actual amount of available capacity, then Transporter will award the capacity in a manner that yields the highest total PV as calculated below. In the event two or more bidders have the same highest total PV, allocations of capacity on a pro rata basis will not be considered for this Open Season; rather, Transporter may consider any necessary modifications to the scope of the Expansion Project Facilities.

The PV for each month will be calculated as follows: PV = (R x Q)/((1+i) to the power of n)

Where: R = the monthly reservation bid rate

Q = the monthly bid volume

i = the monthly discount rate of 0.0060% (which is the annual discount rate of 7.20% divided by 12)

n = with respect to a month during the bid term during which revenue will be received, the number of months from January 1, 2027 (such date being the earliest date the Project Capacity is expected to be available in this Open Season) (for example, n = 1 for January 2027, n = 2 for February 2027, and so on)

Additional Reservations and Conditions:

In connection with this Open Season, successful bidders may submit a future request for the reformation and/or combination of bidder's Transportation Service Agreement(s) in accordance with Transporter's Tariff. Transporter may consider such requests provided they are at least revenue neutral to Transporter and acceptable in all other respects at the sole discretion of Transporter. Following this process, if no existing firm Transportation Service Agreements include Enchanted Rock as a primary Receipt Point, Transporter may retire the Enchanted Rock Receipt Point.

Bids for some or all of the Project Capacity at rates stated in the Tariff, including maximum recourse rate bids, may not provide sufficient economic justification for Transporter's capital investment in the Expansion Project Facilities. Accordingly, Transporter reserves the right to reject all bids received in connection with this Open Season and cancel the proposed Expansion Project Facilities if it does not receive adequate bids for quantities and terms that are necessary to economically justify capital investment in the Expansion Project Facilities. Furthermore, Transporter reserves the right to modify the scope of the Expansion Project Facilities to meet awarded capacity or potential requests from multiple bidders.

Construction of the Expansion Project Facilities is subject to Transporter's receipt of the appropriate management committee and/or board of directors of Transporter and/or its parent companies' consents. Further, the Project Capacity in this Open Season is subject to all necessary approvals, licenses, right-of-ways, permits, and other authorizations required for the construction, maintenance and operation of the Expansion Project Facilities, including any required interconnect agreements, in a form and substance satisfactory to Transporter, in its sole discretion.

Although this is a binding Open Season, Transporter reserves the right, in its sole discretion, to consider requests received after the Open Season End Date, including requests to modify a bidder's validly submitted bid, but will be under no obligation to do so. Requests for capacity received after the Open Season End Date will be subject to the terms and conditions set forth in this Open Season.

Transporter reserves the right to, upon notice at any time and in its sole discretion, terminate this Open Season, extend any date or time specified in this Open Season, amend or supplement the terms of this Open Season, or otherwise modify this Open Season. In addition, Transporter reserves the right to reject any bid which fails to comport with the provisions of this Open Season in any respect.

Capitalized terms used and not otherwise defined herein shall have the meanings given to such terms in the Tariff.

Contact Information:
Questions concerning this Open Season should be directed to:

Tim Dorpinghaus	(719) 520-4245
Ken Ulrich	(719) 520-3712
Beth Gerber	(719) 520-4856
Seth Wright	(281) 229-3956

Open Season Binding Bid Sheet Follows

OPEN SEASON BINDING BID SHEET

McCloud Lateral Open Season

E-mail Bid To: KMWestBids@KinderMorgan.com

A. Bidder Information:

Legal Name of Bidder: _____

Name of Requesting Party: _____

Title of Requesting Party: _____

DUNS Number: _____

Phone: _____

B. Requested Service Term:

Requested Term Start Date: _____ Expansion Project Facilities in-service date is anticipated to be January 1, 2027 (the "In-Service Date"). If bidder seeks a start date after the In-Service Date, please provide the requested date and the reason therefor. If bidder seeks to begin service on the In-Service Date, then bidder may simply provide "In-Service Date" in the blank above.

Note: A Requested Term Start Date shall not be earlier than January 1, 2027, as the In-Service Date is anticipated for January 1, 2027. For bids with a term starting on the In-Service Date, the present value calculation will assume a start date of January 1, 2027.

Requested Term End Date: _____(minimum term of 4 years after the Requested Term Start Date as provided above (with the contract ending on the last day of the applicable month))

C. Transportation Contract Demand (Rate Schedule FT-1):

Primary Receipt Point	Primary Delivery Point	Maximum Delivery Quantity (Dth/day)
Enchanted Rock (ENCHROCK, PIN 58133). Enchanted Rock will be a virtual Receipt Point, located near the interconnect between the proposed McCloud Lateral and EPNG's south mainline system.	McCloud Delivery Point	_____*

*Available Project Capacity is up to 167,000 Dth/day

D. Reservation Rate:

☐ Negotiated Rate: $ _____ per Dth per month **or** $ _____ per Dth per day. A Negotiated Rate will be fixed and not subject to the applicable maximum or minimum rates stated in Transporter's FERC Gas Tariff, Third Revised Volume No. 1A ("Tariff"), as such rates may change from time to time. A daily Negotiated Rate will be converted to a monthly rate by multiplying the daily rate times 365 and dividing the result by 12, rounded to the fourth decimal place.

☐ Other: _____(*i.e.*, the applicable maximum rate stated in the Tariff as that rate may change from time to time). Maximum recourse rate bids may not provide sufficient economic justification for Transporter's capital investment in the Expansion Project Facilities.

E. Applicability of Usage and Other Charges:

In addition to the bid rate(s), successful bidders will be subject to the applicable maximum usage rate and maximum usage surcharges, all other maximum rates, charges and surcharges, including, but not limited to, ACA, Fuel and L&U, Electric Power Costs, and any other authorized surcharges assessed under the applicable Rate Schedule of the Tariff as may change from time to time.

* By submitting this binding bid to Transporter, the bidder certifies that (a) all information contained in the request is complete, true, and accurate, (b) it satisfies, or will be able to satisfy, all the requirements of the Tariff and the requirements set forth in the McCloud Lateral Open Season notice, and (c) the person submitting the bid has full authority to bind the bidder.

OPEN SEASON BINDING BID SHEET

McCloud Lateral Open Season

E-mail Bid To: KMWestBids@KinderMorgan.com

A. Bidder Information:

Legal Name of Bidder: El Paso Electric Company

Name of Requesting Party: Victor Martinez

Title of Requesting Party: Director - Energy Resources

DUNS Number: 007928955

Phone: (915) 543-5792

B. Requested Service Term:

Requested Term Start Date: January 1, 2027 Expansion Project Facilities in-service date is anticipated to be January 1, 2027 (the "In-Service Date"). If bidder seeks a start date after the In-Service Date, please provide the requested date and the reason therefor. If bidder seeks to begin service on the In-Service Date, then bidder may simply provide "In-Service Date" in the blank above.

Note: A Requested Term Start Date shall not be earlier than January 1, 2027, as the In-Service Date is anticipated for January 1, 2027. For bids with a term starting on the In-Service Date, the present value calculation will assume a start date of January 1, 2027.

Requested Term End Date: December 31, 2030 (minimum term of 4 years after the Requested Term Start Date as provided above (with the contract ending on the last day of the applicable month))

C. Transportation Contract Demand (Rate Schedule FT-1):

Primary Receipt Point	Primary Delivery Point	Maximum Delivery Quantity (Dth/day)
Enchanted Rock (ENCHROCK, PIN 58133). Enchanted Rock will be a virtual Receipt Point, located near the interconnect between the proposed McCloud Lateral and EPNG's south mainline system.	McCloud Delivery Point	167,000 *

*Available Project Capacity is up to 167,000 Dth/day

D. Reservation Rate:

[X] Negotiated Rate: $4.2645 per Dth per month **or** $_____ per Dth per day. A Negotiated Rate will be fixed and not subject to the applicable maximum or minimum rates stated in Transporter's FERC Gas Tariff, Third Revised Volume No. 1A ("Tariff"), as such rates may change from time to time. A daily Negotiated Rate will be converted to a monthly rate by multiplying the daily rate times 365 and dividing the result by 12, rounded to the fourth decimal place.

[ ] Other: _____(*i.e.*, the applicable maximum rate stated in the Tariff as that rate may change from time to time). Maximum recourse rate bids may not provide sufficient economic justification for Transporter's capital investment in the Expansion Project Facilities.

E. Applicability of Usage and Other Charges:

In addition to the bid rate(s), successful bidders will be subject to the applicable maximum usage rate and maximum usage surcharges, all other maximum rates, charges and surcharges, including, but not limited to, ACA, Fuel and L&U, Electric Power Costs, and any other authorized surcharges assessed under the applicable Rate Schedule of the Tariff as may change from time to time.

* By submitting this binding bid to Transporter, the bidder certifies that (a) all information contained in the request is complete, true, and accurate, (b) it satisfies, or will be able to satisfy, all the requirements of the Tariff and the requirements set forth in the McCloud Lateral Open Season notice, and (c) the person submitting the bid has full authority to bind the bidder.

El Paso Natural Gas Company, L.L.C.
a Kinder Morgan company

REQUEST FOR PRIOR NOTICE AUTHORIZATION PURSUANT TO BLANKET CERTIFICATE

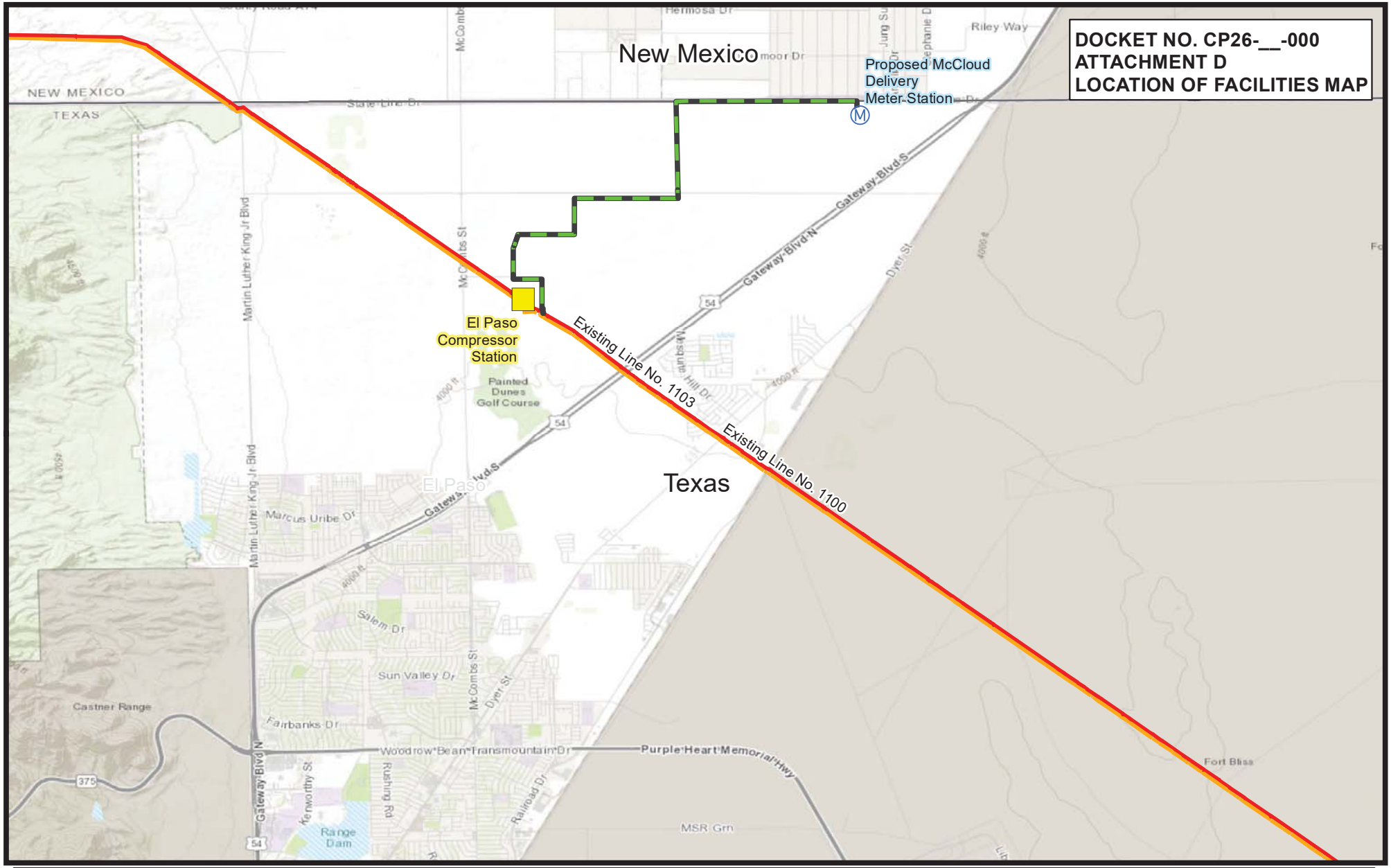
ATTACHMENT D

Location of Facility Map

MCCLOUD LATERAL PROJECT

Docket No. CP26-___-000

DOCKET NO. CP26-__-000
ATTACHMENT D
LOCATION OF FACILITIES MAP



Site Location



Legend

- Existing Line 1100
- Existing Line 1103
- Proposed McCloud Lateral
- El Paso Compressor Station
- Ⓜ Proposed McCloud Delivery Meter Station

0 0.3 0.6 1.2
Scale in Miles

KINDER MORGAN

El Paso Natural Gas Company, L.L.C
McCloud Lateral Project

El Paso County, Texas

Date: 7/30/2026

G:\PDSGIS_MAPPING\YR2026\JIRA\MAPPING\OSGGIS-4046\MXD\OSGGIS-4046 FERC EPNG System Map 2026.mxd

El Paso Natural Gas Company, L.L.C.
a Kinder Morgan company

REQUEST FOR PRIOR NOTICE AUTHORIZATION PURSUANT TO BLANKET CERTIFICATE

ATTACHMENT E

Form of Protective Agreement

MCCLOUD LATERAL PROJECT

Docket No. CP26-___-000

UNITED STATES OF AMERICA
FEDERAL ENERGY REGULATORY COMMISSION

El Paso Natural Gas Company, L.L.C.) Docket No. CP26-___-000

PROTECTIVE AGREEMENT

This Protective Agreement is made and entered into effective as of the ____ day of _____, 2026 ("Effective Date") by and between El Paso Natural Gas Company, L.L.C., a Delaware limited liability company, herein called "Pipeline" and **[insert name of Participant]**, a **[insert state and type of corporate entity]**, herein called "Participant" (collectively Pipeline and Participant are referred to herein as the "Participants").

WHEREAS, Pipeline filed on July 30, 2026 a request for Prior Notice Authorization Pursuant to Blanket Certificate for authorization to construct, install, modify, operate and maintain an approximate 5.8-mile, 16-inch outside diameter pipeline lateral and new delivery meter station, located in El Paso County, Texas. The proposed project, is referred to as the "McCloud Lateral Project", and such filing requested privileged treatment for certain information pursuant to the regulations of the Federal Energy Regulatory Commission ("Commission" or "FERC"); and

WHEREAS, the Commission's regulations require Pipeline to include as part of its request for privileged treatment a proposed Protective Agreement that governs access to the privileged information in the above-captioned docket; and

WHEREAS, Participant desires to obtain access to the information for which Pipeline has requested privileged treatment and has attached hereto the explanation and documentation required by 18 C.F.R. § 388.112(b)(2)(iii) of the Commission's regulations; and

NOW, THEREFORE, in consideration of the mutual covenants and agreements contained herein, Pipeline and Participant agree as follows:

1. This Protective Agreement shall govern the use of all Protected Materials produced by, or on behalf of, Pipeline, in the above-captioned docket. Notwithstanding any order terminating this proceeding, this Protective Agreement shall remain in effect until the earlier of: (i) termination by mutual agreement of the Participants; (ii) the effective date of a new Protective Order issued by a Presiding Administrative Law Judge ("Presiding Judge") (which includes the Chief Administrative Law Judge) or the Commission in trial-type hearing or settlement procedures in connection with adjudication of Pipeline's July 30, 2026 filing, as set forth in 18 C.F.R. § 388.112(b)(2)(v); or (iii) by a specific order of the Commission terminating this Protective Agreement. To the extent there is a conflict

between the terms of this Protective Agreement and a subsequent Protective Order as set forth in (ii) above, the terms of the subsequent Protective Order shall control.

2. This Protective Agreement applies to the following two categories of materials: (A) Pipeline may designate as protected those materials which customarily are treated by Pipeline as sensitive or proprietary, which are not available to the public, and which, if disclosed freely, would subject Pipeline or its customers to risk of competitive disadvantage or other business injury; and (B) Materials which contain critical energy infrastructure information, as defined in 18 CFR§ 388.113(c)(1) ("Critical Energy Infrastructure Information").

3. Definitions -- For purposes of this Agreement:

(a) (1) The term "Protected Materials" means (A) materials submitted to the Commission with Pipeline's Request for Prior Notice Authorization Pursuant to Blanket Certificate for the construction of a nine-mile loop line extension referred to as the "Permian West Expansion Project", in the above-captioned docket for which Pipeline has requested privileged treatment pursuant to the Commission's regulations and any subsequent submissions by Pipeline to the Commission in the above captioned docket for which Pipeline requests privileged treatment pursuant to the Commission's regulations; (B) materials designated by Pipeline or Participant as protected; (C) any information contained in or obtained from such designated materials; (D) any other materials which are made subject to this Protective Agreement by the Commission, by any court or other body having appropriate authority, or by mutual written agreement of the Participants; (E) Notes of Protected Materials; and (F) copies of Protected Materials. The Pipeline or Participant, as applicable, producing the Protected Materials shall physically mark them on each page in accordance with 18 C.F.R. § 388.112(b), including labeling each page as "CUI//PRIV" and "Contains Privileged Information - Do Not Release". If the Protected Materials contain Critical Energy Infrastructure Information, the Pipeline or Participant, as applicable, producing such information shall additionally mark on each page containing such information the words "CUI//CEII" and "Contains Critical Energy Infrastructure Information - Do Not Release".

(2) The term "Notes of Protected Materials" means memoranda, handwritten notes, or any other form of information (including electronic form) which copies or discloses materials described in Paragraph 3(b)(1). Notes of Protected Materials are subject to the same restrictions as Protected Materials, except as specifically provided in this Protective Agreement.

(3) Protected Materials shall not include (A) any information or document that has been filed with and accepted into the public files of the Commission, or contained in the public files of any other federal or state agency, or any federal or state court, unless the information or document has been determined to be protected by such agency or court, or

(B) information that is public knowledge, or which becomes public knowledge, other than through disclosure in violation of this Protective Agreement. Protected Materials do include any information or document contained in the files of the Commission that has been designated as Critical Energy Infrastructure Information.

(b) The term "Non-Disclosure Certificate Concerning Protected Material" and "Non-Disclosure Certificate Concerning Protected Material Including Protected Material Marked as Not Available to Competitive Duty Personnel" shall mean the certificates annexed hereto which, once signed by a Reviewing Representative of Participant, will allow for access to Protected Materials and certifies Reviewing Representative's understanding that such access to Protected Materials is provided pursuant to the terms and restrictions of this Protective Agreement applicable to such materials, and that such Reviewing Representative has read the Protective Agreement and agrees to be bound by it.

(c) The term "Reviewing Representative" shall mean a person who has signed a Non-Disclosure Certificate and who is:

(1) an attorney who has made an appearance in this proceeding for Participant;

(2) attorneys, paralegals, and other employees associated for purposes of this case with an attorney described in Subparagraph (2);

(3) an expert or an employee of an expert retained by Participant for the purpose of advising, preparing for or testifying in this proceeding;

(4) a person designated as a Reviewing Representative by order of the Commission; or

(5) employees or other representatives of Participant appearing in this proceeding with significant responsibility for this docket.

4. Protected Materials shall be made available under the terms of this Protective Agreement only to Participant and only through its Reviewing Representative(s) as provided in Paragraphs 7-9.

5. Protected Materials shall remain available to Participant until the later of the date that an order terminating this proceeding becomes no longer subject to judicial review, or the date that any other Commission proceeding relating to the Protected Materials is concluded and no longer subject to judicial review. If requested to do so in writing after that date, Participant shall, within fifteen days of such request, return the Protected Materials (excluding Notes of Protected Materials) to Pipeline, or shall destroy the materials, except that copies of filings, official transcripts and exhibits in this proceeding that contain Protected Materials, and Notes of Protected Materials may be retained, if they

are maintained in accordance with Paragraph 6, below. Within such time period Participant, if requested to do so, shall also submit to the Pipeline an affidavit stating that, to the best of its knowledge, all Protected Materials and all Notes of Protected Materials have been returned or have been destroyed or will be maintained in accordance with Paragraph 6. To the extent Protected Materials are not returned or destroyed, they shall remain subject to the Protective Agreement and may not be used in any other proceeding, tribunal or case outside of the above-referenced FERC Docket.

6. All Protected Materials shall be maintained by Participant in a secure place. Access to those materials shall be limited to those Reviewing Representatives specifically authorized pursuant to Paragraphs 8-9. The Secretary shall place any Protected Materials filed with the Commission in a non-public file. By placing such documents in a non-public file, the Commission is not making a determination of any claim of privilege. The Commission retains the right to make determinations regarding any claim of privilege and the discretion to release information necessary to carry out its jurisdictional responsibilities. For documents submitted to Commission Trial Staff ("Staff"), Staff shall follow the notification procedures of 18 CFR § 388.112 before making public any Protected Materials.

7. Protected Materials shall be treated as confidential by Participant and by its Reviewing Representative(s) in accordance with the Non-Disclosure Certificate(s) executed pursuant to Paragraph 9. Protected Materials shall not be used except as necessary for the conduct of this proceeding, nor shall they be disclosed in any manner to any person except a Reviewing Representative who is engaged in the conduct of this proceeding and who needs to know the information in order to carry out that person's responsibilities in this proceeding. Reviewing Representatives may make copies of Protected Materials, but such copies become Protected Materials. Reviewing Representatives may make notes of Protected Materials, which shall be treated as Notes of Protected Materials if they disclose the contents of Protected Materials.

8. (a) If a Reviewing Representative's scope of employment includes the marketing, sale, or purchase of natural gas, natural gas transportation services, or natural gas storage service, the direct supervision of any employee or employees whose duties include the marketing, sale, or purchase of natural gas, natural gas transportation services, or natural gas storage service, the provision of consulting services to any person whose duties include the marketing, sale, or purchase of natural gas, natural gas transportation services, or natural gas storage service, or the direct supervision of any employee or employees whose duties include the marketing, sale, or purchase of natural gas, natural gas transportation services, or natural gas storage service, such Reviewing Representative may not use information contained in any Protected Materials obtained through this proceeding to give Participant, Participant's affiliates, or any competitor of Pipeline a commercial advantage.

(b) Subject to Paragraph 22 regarding access to Protected Materials that are marked as Not Available to Competitive Duty Personnel, in the event that Participant wishes to designate as a Reviewing Representative a person not described in Paragraph 3 (c) above, the Participant shall seek agreement from the Pipeline. If an agreement is reached, that person shall be a Reviewing Representative pursuant to Paragraphs 3(c) above with respect to those materials. If no agreement is reached, Participant may submit the disputed designation to the Commission for resolution.

9. (a) A Reviewing Representative shall not be permitted to inspect, participate in discussions regarding, or otherwise be permitted access to Protected Materials pursuant to this Protective Agreement unless that Reviewing Representative has first executed the appropriate Non-Disclosure Certificate; provided, that if an attorney qualified as a Reviewing Representative has executed such a certificate, the paralegals, secretarial and clerical personnel under the attorney's instruction, supervision or control need not do so. A copy of each Non-Disclosure Certificate shall be provided to counsel for the Pipeline prior to disclosure of any Protected Material to that Reviewing Representative.

(b) Attorneys qualified as Reviewing Representatives are responsible for ensuring that persons under their supervision or control comply with this order.

10. Any Reviewing Representative may disclose Protected Materials to any other Reviewing Representative as long as the disclosing Reviewing Representative and the receiving Reviewing Representative both have executed the appropriate Non-Disclosure Certificate and provided the Non-Disclosure Certificate to counsel for Pipeline. In the event that any Reviewing Representative to whom the Protected Materials are disclosed ceases to be engaged in these proceedings, or is employed or retained for a position whose occupant is not qualified to be a Reviewing Representative under Paragraph 3(c), access to Protected Materials by that person shall be terminated. Even if no longer engaged in this proceeding, every person who has executed a Non-Disclosure Certificate shall continue to be bound by the provisions of this Protective Agreement and the certification.

11. Subject to Paragraph 18, the Commission shall resolve any disputes arising under this Protective Agreement. Prior to presenting any dispute under this Protective Agreement to the Commission, Participants shall use their best efforts to resolve the dispute. If Participant contests Pipeline's designation of materials as privileged, it shall notify Pipeline in writing and specify the materials the designation of which is contested.

12. All documents reflecting Protected Materials, including the portion of any application, contract, pleading, exhibits, transcripts, briefs and other documents which contain or refer to Protected Materials, to the extent they will be filed with the Commission, shall be filed either (i) by hand in sealed envelopes or other appropriate containers endorsed to the effect that they are sealed pursuant to this Protective Agreement; or (ii) electronically on the Commission's website in accordance with the procedures for electronic filing of

privileged material or CEII. Such documents shall be marked "CUI//PRIV" and "PROTECTED/PRIVILEGED MATERIALS– DO NOT RELEASE" and shall be filed and served in accordance with Commission regulations. Such documents containing Critical Energy Infrastructure Information shall be additionally marked "CUI/CEII" and "CONTAINS CRITICAL ENERGY INFRASTRUCTURE INFORMATION - DO NOT RELEASE". For anything filed by hand or electronically, redacted versions or, where an entire document is protected, a letter indicating such, will also be filed with the Commission and served in accordance with Commission regulations. Participant shall take all reasonable precautions necessary to assure that Protected Materials are not distributed to unauthorized persons.

13. Except in cases where release is ordered sooner by the Commission, Protected Materials that have been requested pursuant to this Protective Agreement will be provided within five days of receipt of the request satisfying 18 C.F.R. § 388.112(b)(2)(iii); provided, however, that if Pipeline files an objection to such request with the Commission, Pipeline is under no obligation to disclose the requested Protected Materials until ordered by the Commission or a decisional authority.

14. Nothing in this Protective Agreement shall be construed as precluding Pipeline or Participant from objecting to the use of Protected Materials on any legal grounds.

15. Nothing in this Protective Agreement shall preclude Participant from requesting that the Commission, or any other body having appropriate authority, find that this Protective Agreement should not apply to all or any materials previously designated as Protected Materials pursuant to this Protective Agreement. The Commission may alter or amend this Protective Agreement as circumstances warrant at any time during the course of this proceeding. Participants may amend this Protective Agreement at any time by written mutual agreement without seeking Commission approval, unless such amendment is otherwise specifically prohibited by law.

16. Both Pipeline and Participant have the right to seek changes in this Protective Agreement as appropriate from the Commission.

17. If the Commission finds at any time in the course of this proceeding that all or part of the Protected Materials need not be protected, those materials shall nevertheless, be subject to the protection afforded by this Protective Agreement until the date the Commission orders the materials be produced. Pipeline reserves its rights to seek additional administrative or judicial remedies after the Commission's decision respecting Protected Materials or Reviewing Representatives, or the Commission's denial of any appeal thereof. The provisions of 18 CFR §§ 388.112 and 388.113 shall apply to any requests under the Freedom of Information Act (5 U.S.C. § 552) for Protected Materials in the files of the Commission.

18. Nothing in this Protective Agreement shall be deemed to preclude any Participant from independently seeking through discovery in any other administrative or judicial proceeding information or materials produced in this proceeding under this Protective Agreement.

19. Neither Pipeline nor Participant waives the right to pursue any other legal or equitable remedies that may be available in the event of actual or anticipated disclosure of Protected Materials.

20. The contents of Protected Materials or any other form of information that copies or discloses Protected Materials shall not be disclosed to anyone other than in accordance with this Protective Agreement and shall be used only in connection with this (these) proceeding(s).

21. Pipeline shall physically mark with the words "Not Available to Competitive Duty Personnel," any Protected Materials that Pipeline believes in good faith would, if freely disclosed, subject Pipeline, or third party, to risk of competitive disadvantage or other concrete business injury if provided to all Reviewing Representatives. Such information may include, but is not limited to (a) non-public business development, acquisition, or marketing data, plans or activities, (b) non-public strategic business or financial plans or activities, or (c) negotiations of services, prices and rates, the public disclosure of which such Participant in good faith believes would competitively harm the disclosing Participant or third party (hereafter "Market Sensitive Information"). Market Sensitive Information should customarily be treated by the providing Participant as sensitive or proprietary and not be available to the public. Any challenge to such a designation may be made as provided in this Protective Order for challenges to designations of Protected Materials.

22. Solely with respect to Protected Materials that have been marked "Not Available to Competitive Duty Personnel" and information derived therefrom, a Reviewing Representative may not be any employee or agent of Participant whose duties include, on a consistent and regular basis, (1) the marketing, sale, or purchase of natural gas, natural gas transportation services, or natural gas storage services (i) on Pipeline or (ii) on a natural gas pipeline or storage facility in any region in which Pipeline operates or (iii) for a shipper or prospective shipper on a natural gas pipeline or storage facility in any region in which Pipeline operates; (2) management responsibility regarding, or the supervision of any employee whose duties include, the marketing, sale, or purchase of natural gas, natural gas transportation services, or natural gas storage services (i) on Pipeline or (ii) on a natural gas pipeline or storage facility in any region in which Pipeline operates or (iii) for a shipper or prospective shipper on any pipeline or storage facility in any region in which Pipeline operates; (3) the provision of consulting services regarding the marketing, sale, or purchase of natural gas, natural gas transportation services, or natural gas storage services for a pipeline or storage facility in any region in which Pipeline operates or for a shipper or prospective shipper on Pipeline or any pipeline or storage facility in any region in which

Pipeline operates; or (4) management responsibility regarding other strategic business activities in which use of Market Sensitive Information could be reasonably expected to cause competitive harm to Pipeline or third party (collectively, "Competitive Duties"). Notwithstanding the above, in-house and/or outside counsel for Participant may serve as a Reviewing Representative; provided, however, that in-house and/or outside counsel shall not disclose any Market Sensitive Information to Competitive Duty Personnel. In the event that (a) any person who has been a Reviewing Representative subsequently is assigned to perform any Competitive Duties, or (b) previously available Protected Materials are changed to "Not Available to Competitive Duty Personnel," a Reviewing Representative involved in Competitive Duties shall have no access to Pipeline's Protected Materials that are marked "Not Available to Competitive Duty Personnel" or information derived therefrom. Such Reviewing Representative shall immediately dispose of Pipeline's Protected Materials in his/her possession that are marked "Not Available to Competitive Duty Personnel" and information derived therefrom and shall continue to comply with the requirements of the Non-Disclosure Certificate Concerning Protected Material, Including Protected Material Marked As Not Available to Competitive Duty Personnel, and this Protective Agreement with respect to any Protected Materials to which such person previously had access.

Notwithstanding the foregoing, with respect to Protected Materials that have been marked "Not Available to Competitive Duty Personnel" and information derived therefrom, a Reviewing Representative may not be an employee of a FERC-regulated natural gas pipeline or storage facility in any region in which Pipeline operates. Reviewing Representatives of such a pipeline or storage facility, with respect to Protected Materials that have been marked "Not Available to Competitive Duty Personnel", shall be limited to outside counsel and/or consultants, provided such individuals are not engaged in Competitive Duties, as defined above, on behalf of such pipeline or storage facility.

Notwithstanding the foregoing, a person who otherwise would be disqualified as Competitive Duty Personnel may serve as a Reviewing Representative upon agreement of Pipeline or, in the absence of such agreement, upon entry of an order of the Commission authorizing such person to serve as a Reviewing Representative. Any request for an agreement or order under the preceding sentence shall be subject to the following conditions: (i) Participant must certify in writing to Pipeline that Participant's ability to participate effectively in this proceeding would be prejudiced if it was unable to rely on the assistance of the particular Reviewing Representative; (ii) Participant must identify by name and job title the particular Reviewing Representative required and must describe the person's duties and responsibilities; (iii) the Participant claiming such prejudice must acknowledge in writing to Pipeline that access to the Protected Materials which are marked as Not Available to Competitive Duty Personnel shall be restricted only to such access necessary for the adjudication of this proceeding, absent prior written consent of the Pipeline or authorization of the Commission with opportunity for Pipeline to seek review of such decision as provided in this order; (iv) Participant must acknowledge in writing

that any other use of Protected Materials which are Not Available to Competitive Duty Personnel shall constitute a violation of this Protective Agreement; and (v) prior to having access to any Protected Materials which are marked as Not Available to Competitive Duty Personnel, the Competitive Duty Personnel who is authorized to act as a Reviewing Representative must execute and deliver to Pipeline a Non-Disclosure Certificate Concerning Protected Material, Including Protected Material Marked As Not Available to Competitive Duty Personnel acknowledging his or her familiarity with the contents of this Protective Agreement and the particular restrictions set forth in this paragraph regarding such Protected Materials. Such agreement by Pipeline shall not be unreasonably withheld, delayed or conditioned. Materials marked as "Not Available to Competitive Duty Personnel" shall be returned or destroyed at the conclusion of this proceeding as otherwise provided in this Protective Agreement.

23. If Pipeline believes that Protected Materials that it previously disclosed to Reviewing Representative(s) contain Market Sensitive Information, public disclosure of which would competitively harm the Pipeline, and should be treated as if such Protected Materials had been labeled "Not Available to Competitive Duty Personnel," Pipeline must notify Participant. Such notice must specifically identify the Protected Materials that contain such Market Sensitive Information, make an informal showing of why such information should be subject to the restrictions applicable to Protected Materials labeled "Not Available to Competitive Duty Personnel," and must seek Participant's consent to treatment of the subject materials as "Not Available to Competitive Duty Personnel." Such consent shall not be unreasonably withheld, delayed or conditioned. If no agreement is reached concerning the designation of previously distributed Protected Material as "Not Available to Competitive Duty Personnel," Pipeline may submit the dispute to the Commission. In the event that Pipeline's previously distributed Protected Material is subsequently designated as "Not Available to Competitive Duty Personnel," it will be the responsibility of Participant to ensure compliance with this Protective Agreement after the additional designation; Pipeline will not be responsible for redistributing or re-labeling the affected Protected Materials.

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By: _____

EL PASO NATURAL GAS COMPANY, L.L.C.

Name: _____

AGREED TO AND ACCEPTED THIS ___ DAY OF _____, 2026__

Title: _____

[NAME OF PARTICIPANT]

AGREED TO AND ACCEPTED
THIS ___ DAY OF _____, 2026__

By: _____

Name: _____

Title: _____

UNITED STATES OF AMERICA
FEDERAL ENERGY REGULATORY COMMISSION

El Paso Natural Gas Company, L.LC.) Docket No. CP26-___-000

NON-DISCLOSURE CERTIFICATE
CONCERNING PROTECTED MATERIALS

I hereby certify my understanding that access to Protected Materials is provided to me pursuant to the terms and restrictions of the Protective Agreement in this proceeding, that I have been given a copy of and have read the Protective Agreement, and that I agree to be bound by it. I understand that the contents of the Protected Materials, any notes or other memoranda, or any other form of information that copies or discloses Protected Materials shall not be disclosed to anyone other than in accordance with that Protective Agreement. I acknowledge that a violation of this certificate constitutes a violation of an order of the Federal Energy Regulatory Commission.

By: _____

Printed Name: _____

Title: _____

Representing: _____

Email Address: _____

Date: _____

UNITED STATES OF AMERICA
BEFORE THE
FEDERAL ENERGY REGULATORY COMMISSION

El Paso Natural Gas Company, L.LC.) Docket No. CP26-___-000

NON-DISCLOSURE CERTIFICATE
CONCERNING PROTECTED MATERIAL
AND PROTECTED MATERIAL MARKED AS
NOT AVAILABLE TO COMPETITIVE DUTY PERSONNEL

I hereby certify my understanding that access to Protected Materials is provided to me pursuant to the terms and restrictions of the Protective Agreement in this proceeding, that I have been given a copy of and have read the Protective Agreement, and that I agree to be bound by it. I understand that the contents of the Protected Materials, including Protected Materials that are marked as "Not Available to Competitive Duty Personnel", any notes or other memoranda, or any other form of information that copies or discloses Protected Materials shall not be disclosed to anyone other than in accordance with that Protective Agreement. I acknowledge that a violation of this certificate constitutes a violation of an order of the Federal Energy Regulatory Commission.

By: _____

Printed Name: _____

Title: _____

Representing: _____

Email Address: _____

Date: _____